It is striking how many of the BJP's big-ticket political actions in 2019 can be traced back to Syama Prasad Mookerjee's inaugural address to the Jan Sangh on 21 October 1951. Presaging the debate over CAA, which triggered protests across India in 2019-20, Mookerjee had declared in his speech that the unfinished agenda of Partition—which he wanted annulled—must be solved. 'The Government of India was honour-bound to see that the minorities in Pakistan got a square deal,' he argued.[62] The Jan Sangh's early focus on non-Muslim refugees from Pakistan puts the modern politics of the BJP in context.

The party clearly saw Nehru's attitude to Hindus in Pakistan as a show of weakness on the part of India that needed correction. Speaking in Jodhpur in December 1951, Mookerjee declared that, 'Partition of India might have been agreed to by the Congress with the best of motives. It is, however, amazing that partition problems, mainly arising out of a policy of weakness and appeasement of Nehru government and also the blatantly communal and anti-Hindu policy of Pakistan should not be taken in hand and attempted to be solved … One such problem relates to the protection of minorities in Pakistan, especially in East Bengal. The other was the problem of rehabilitation. These were not communal problems but political and international.'[63]

This runs quite close to what Narendra Modi or Amit Shah argued in 2020, while making a case for CAA. Replying to questions in Parliament in December 2019, Amit Shah was categorical: 'It would have been nice if Partition did not take place on the religious line, but it did. Muslim majority areas went to Pakistan and rest became India. Had India not been divided on religious lines, there was no need for Citizenship (Amendment) Bill … Those who have suffered are the ones who can best tell their story … We cannot say no to shelter to those who have come here seeking protection for their daughters.'[64]

In 1958, the Jan Sangh even passed a resolution demanding the rehabilitation of refugees who could not be settled in West Bengal in the nearby areas of Assam, Bihar, Orissa, Tripura, Manipur and Dandakaranya. An eight-member committee was set up in Calcutta for this.[65] An early prestige battle for the party was the fate